



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

July 31, 2015

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 16340
(FIRST REVISION)

EXPIRATION DATE: April 30, 2019

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Praxair Distribution Mid-Atlantic, LLC
Bethlehem, PA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain DOT Specification cylinders, marked with RIN A890 that have not been requalified in accordance with Subpart C of part 180, to a Praxair Distribution Mid-Atlantic, LLC requalification facility. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 171.2 and 177.801 in that a person is prohibited from offering or accepting for transportation a hazardous material that is

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not prepared in accordance with the requirements of Subchapter C of Chapter I of 49 CFR and § 172.302(c) in that marking the special permit number on the package is not required.

5. BASIS: This special permit is based on the application of Praxair Distribution, LLC dated April 28, 2015, submitted in accordance with § 107.109 and May 26, 2015 submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Liquefied or non-liquefied compressed gases or mixtures thereof, classed as Division 2.2*	2.2	As appropriate	As appropriate
Liquefied or non-liquefied compressed gases or mixtures thereof, classed as Division 2.2 (5.1), oxidizing gases	2.2 (5.1)	As appropriate	As appropriate

*Cylinders containing Division 2.2 materials with no subsidiary hazard at a gauge pressure less than 29 psig at 68°F are not subject to the requirements of the HMR (see § 173.29)

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are certain DOT Specification cylinders that have been improperly marked with RIN A890 that have not been requalified in accordance with Subpart C of part 180.

- b. OPERATIONAL CONTROLS:

(1) Pressurized DOT Specification cylinders authorized under the terms of this special permit may only be transported from Liberty Industrial Gases & Welding Supply Inc. facility in Brooklyn, NY to Praxair Distribution, LLC in Newark, NJ or Morrisville, PA to be depressurized and/or requalified. A cylinder that is depressurized may be transported from Praxair

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Distribution, LLC in Newark, NJ or Morrisville, PA to a Praxair facility in the continental United States for requalification.

(2) All packages shipped under this special permit must be transported by a private or contract carrier.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is requalified.

c. Cylinders authorized under the terms of this special permit cannot be refilled prior to being requalified in accordance with Subpart C of Part 180 of the HMR.

d. MARKING - Cylinders that pass the requalification tests must be remarked with a valid Praxair RIN number. No removal of the RINA890 marking from the cylinder is authorized.

e. Once a cylinder passes the requalification tests and has been marked in accordance with § 180.213, it is no longer subject to the terms of this special permit.

f. Praxair must document and maintain the requalification of each cylinder having the latest retest date showing RIN A890 on separate requalification test sheets. Praxair must prepare a report of the total number of cylinders tested and the number of cylinders rejected. The test results must be summarized by cylinder specification. The report must be submitted on a quarterly basis to PHMSA using the following email address: specialpermits@dot.gov.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie

Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CWF/SG